

SENATE No. 1797**The Commonwealth of Massachusetts**

PRESENTED BY:

Nick Collins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to disability or death caused by infectious diseases, presumption.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Nick Collins</i>	<i>First Suffolk</i>	
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>3/26/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/26/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>3/26/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>3/26/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/26/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/26/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>3/26/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>3/26/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/26/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>3/26/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>4/3/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>4/9/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>5/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>5/19/2025</i>

SENATE No. 1797

By Mr. Collins, a petition (accompanied by bill, Senate, No. 1797) of Nick Collins for legislation relative to disability or death caused by infectious diseases, presumption. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1624 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to disability or death caused by infectious diseases, presumption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 32 of the General Laws is hereby amended by inserting after section 94B the
2 following new section:-

3 Section 94C. (1) Notwithstanding the provisions of any general or special law to the
4 contrary, and for the purposes of any death, disability or medical services claim including claims
5 under Chapter 32, Chapter 41 and Chapter 152 of the General Laws, any contagious disease,
6 resulting in disability or death to a full-time uniformed member of a paid police department, fire
7 department or municipal emergency medical service shall, if he or she successfully passed a
8 physical examination on entry into such service or subsequent to such entry, which examination
9 failed to reveal any evidence of such condition, be presumed to have been suffered in the line of
10 duty, unless it is shown by a preponderance of the evidence that non-service connected risk

11 factors or non-service connected accidents or hazards undergone, or any combination thereof,
12 caused such incapacity. The provisions of this section shall only apply if the disabling or fatal
13 condition is a type of contagious disease which may, in general, result from exposure to blood
14 and other body fluids of the sick, excluding the common cold. (2) Any person first discovering
15 any such condition within five years of the last date on which such person actively so served
16 shall be eligible to apply for benefits hereunder, and such benefits, if granted, shall be payable as
17 of the date on which the employee last received regular compensation. The provisions of this
18 section shall not apply to any person serving in such position unless such person shall first
19 establish that he has regularly responded to calls for police, fire or emergency medical service
20 during some portion of the period of his service in such position. (3) The provisions of this
21 section shall also apply to any condition of COVID-19, Hepatitis A, B, or C, Tuberculosis, HIV,
22 and any other contagious disease which is found by regulation by the commissioner of the
23 department of public health to have a statistically significant correlation with police, fire or
24 emergency medical service. (4) Nothing herein shall preclude a member from applying for and
25 receiving benefits under section seven or section nine, subject to the provisions of said sections.